

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

June 1, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Alkurdi vs. Tu 2024-01373765	Motion for Summary Judgment and/or Adjudication The Court denies Defendant Mark IV Capital, Inc.’s Motion for summary judgment of Plaintiff Rafi Alkurdi’s (a minor by and through his guardian ad litem Ahmad Alkordi) First Amended Complaint (FAC). Defendant filed a separate statement response to Plaintiffs’ separate statement filed in opposition. (ROA 202.) California Rules of Court, rule 3.1350 does not contemplate a reply separate statement. Defendant did not obtain prior permission from the court to file the additional separate statement. Accordingly, the document was not considered. <u>Objections</u> Defendant provides evidentiary objections on reply. The Court overrules objection nos. 1-21. <u>Merits</u> Plaintiff brings a singular claim of negligence in the FAC. Defendant Mark IV, Capital, Inc. (“Mark IV”) hosted a holiday party on December 7, 2023, with a cocktail hour starting at or about 6:00 p.m. (the “holiday party”) at Lido House in Newport Beach, California. (Separate Statement of Undisputed Fact (SSUF) 1, 2) On December 7, 2023, Defendant Wiki Tu had been an employee of Mark IV for four to five years as an accountant. (SSUF 4) On December 7, 2023, Wiki Tu left Mark IV’s offices in Newport Beach and drove to her home in Lake Forest, California, making it home safely. (SSUF 5) After arriving at her home in Lake Forest from Mark IV’s offices in Newport Beach, Wiki Tu prepared her things and left home to head to the Lido House early. (SSUF 22) On her way to the Lido House in Newport Beach, Wiki Tu struck Plaintiff Rafi Alkurdi with her vehicle, at around 3:30 p.m. (the “incident”). (SSUF 23) The incident occurred at the intersection of Jeffrey Road and Quailcreek Road in Irvine, California. (SSUF 24)

	In the FAC, Plaintiff seeks to hold Mark IV responsible for Wiki Tu’s accident on the ground Wiki was acting within the course and scope of her employment with Defendant Mark IV at the time of the accident. (FAC, ¶13.) To recover from an employer under respondeat superior, a plaintiff must establish both that an employment relationship exists between the tortfeasor and the defendant and that the tort was committed within the scope of the tortfeasor’s employment. (<i>See, e.g., Alma W. v. Oakland Unified Sch. Dist.</i> (1981) 123 Cal.App.3d 133, 139.) “ ‘An offshoot of the doctrine of respondeat superior is the so-called “going and coming rule.” Under this rule, an employee is not regarded as acting within the scope of employment while going to or coming from the workplace. ... This is based on the concept that the employment relationship is suspended from the time the employee leaves work until he or she returns, since the employee is not ordinarily rendering services to the employer while traveling. ...’ ” (<i>Jeewarat v. Warner Bros. Entertainment, Inc.</i> (2009) 177 Cal.App.4th 427, 435.) Under the going-and-coming rule, commute time is not within the scope of employment. However, if the employee is engaged in a “special errand” or a “special mission” for the employer while commuting, it will negate the going-and-coming rule and put the employee within the scope of employment. (<i>Jeewarat v. Warner Brothers Entertainment, Inc.</i> (2009) 177 Cal.App.4th 427, 435–436, summary judgment in favor of driver's employer reversed; triable issue existed as to whether employee's attendance at a business conference was a special errand so as to hold the employer vicariously for injuries sustained by plaintiff in an automobile accident; <i>Lynn v. Tatitlek Support Services, Inc.</i> (2017) 8 Cal.App.5th 1096, 1111, commute time is within the scope of employment if the employer compensates the employee for the time spent commuting.) While respondeat superior liability does not generally require an employee's actions benefit her employer, courts have required injured plaintiffs to show some benefit to the employer when invoking an exception to the “going-and-coming rule.” (<i>Fields v. State</i> (2012) 209 Cal.App.4th 1390, 1396; <i>Moradi v. Marsh USA, Inc.</i> (2013) 219 Cal.App.4th 886, 896.) There is a “special errand” exception, which applies where the employee is on a special errand for the employer, either as part of his regular duties or at a specific order or request of his employer.
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(*Morales-Simental v. Genentech, Inc.* (2018) 16 Cal.App.5th 445, 452–453.)

“The term ‘special errand’ is something of a misnomer because it implies that the employer must make a specific request for a particular errand. However, the ‘special errand’ can also be part of the employee's regular duties. Thus, we have chosen to use the term ‘business errand’ throughout this opinion, as it is more precise and descriptive.” (*Sumrall v. Modern Alloys, Inc.* (2017) 10 Cal.App.5th 961, 968, fn. 1.)

“The special [errand] exception requires three factors to be met: (1) the activity is extraordinary in relation to the employee’s routine duties, (2) the activity is within the course of the employee’s employment, and (3) the activity was undertaken at the express or implied request of the employer and for the employer’s benefit.” (*Feltham v. Universal Protection Service, LP* (2022) 76 Cal.App.5th 1062, 1072, internal citation omitted.)

Here, Defendant argues that Wiki Tu was not required to attend the holiday party as it was meant as a leisure event, to allow employees to socialize and celebrate the holidays together. (SSUF 7-10)

But the Court finds triable issues of material fact as to whether Plaintiff was paid for the time she was traveling, whether the event was not in fact optional, and whether the company funded function provided an employer-benefit such as team-building, networking, workplace cohesion, and leadership messaging, including acknowledging all of the employees at Mark IV and their contributions. (Additional Material Fact (AMF) Nos. 1-17.)

Attendance at social functions may fall within the “special errand” rule where the event is connected with the employment and intended to benefit the employer who requested or expected the employee to attend. (*Boynton v. McKales* (1956) 139 Cal.App.2d 777, 789; see CACI 3726.)

Thus, the Motion is denied.

Defendant is ordered to serve notice.

2	Bowie vs. NuEyes Technologies, Inc. 2025-01501793	Demurrer to Amended Cross-Complaints (NuEyes and Greget) Plaintiffs/Cross-Defendants Fraser G. Bowie (“Bowie”) and The Bowie Group LLC (“Bowie Group”) (collectively, “Plaintiffs”) demur generally to the three causes of action alleged in the First Amended Answer and Counterclaims (“NuEyes FACC”) filed by Defendant/Cross-Complainant NuEyes Technologies, Inc. (“NuEyes”). Plaintiffs demur generally to the four causes of action alleged in the First Amended Answer and Counterclaims (“Greget FACC”) filed by Defendant/Cross-Complainant Mark Greget (“Greget”). DEMURRER TO NUEYES FACC Plaintiffs did not include a proof of service showing the notice of demurrer and papers in support of Plaintiffs’ demurrer to the NuEyes FACC were properly served on all parties. (Code Civ. Proc., §§ 1005, subd. (b) and 1014; Cal. Rules of Ct., Rule 3.1300(c).) No opposition was filed. The Court declines to consider the merits of the demurrer. Demurrer is overruled. Plaintiffs to answer the cross complaint within 30 days. DEMURRER TO GREGET’S FACC Plaintiffs also did not include a proof of service showing the notice of demurrer and papers in support of Plaintiffs’ demurrer to the Greget FACC were properly served on all parties. (Code Civ. Proc., §§ 1005, subd. (b) and 1014; Cal. Rules of Ct., Rule 3.1300(c).) However, Greget served and filed a timely opposition without objecting to service. The Court notes Plaintiffs’ demurrer did not comply with CRC Rule 3.1320(a). (<i>See</i>, Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 7:98.) Greget did not oppose the demurrer on this ground. Plaintiffs’ meet and confer declaration also did not show a sufficient effort to comply with CCP section 430.41. (Macaulay Decl., ¶¶ 3-6.) However, in light of the positions taken in the papers, the Court exercises its discretion to proceed with the merits of the demurrer despite the insufficient meet and confer. <u>First and second causes of action for defamation per se</u> Litigation privilege
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The litigation privilege “is to be pleaded as affirmative matter of defense to an action for libel (*Gilman v. McClatchy*, 111 Cal. 606, 44 Pac. 241), yet where the complaint shows on its face that the publication was privileged, the point may be raised on general demurrer.” (*Gosewisch v. Doran* (1911) 161 Cal. 511, 516.)

Subject to express exceptions, a privileged publication or broadcast is one made in “any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure.” (Civ. Code, § 47, subd. (b).) “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Holland v. Jones* (2012) 210 Cal.App.4th 378, 381, citing *Jacob B. v. County of Shasta* (2007) 40 Cal.4th 948, 955.)

The litigation privilege is an absolute privilege and it bars all tort causes of action except a claim of malicious prosecution. (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.) “The litigation privilege has been applied in ‘numerous cases’ involving ‘fraudulent communication or perjured testimony.’” (*Id.*, citing *Silberg v. Anderson* (1990) 50 Cal.3d 205, 218.) In addition, “communications made in connection with litigation do not necessarily fall outside the privilege simply because they are, or are alleged to be, fraudulent, perjurious, unethical, or even illegal.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 920.)

“The primary purpose of this privilege is to ‘afford litigants and witnesses [citation] the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions.’” (*Mancini & Associates v. Schwetz*, 39 Cal.App.5th at 660-661.)

Greget’s allegations in the first and second causes of action does not show Bowie’s statements were privileged.

Common interest privilege

A privileged publication or broadcast is one made “[i]n a communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is

requested by the person interested to give the information.” (Civ. Code, § 47, subd. (c).)

“Civil Code section 47, subdivision (c) codifies the common law privilege of common interest, ‘which protected communications made in good faith on a subject in which the speaker and hearer shared an interest or duty. This privilege applied to a narrow range of private interests. The interest protected was private or pecuniary; the relationship between the parties was close, e.g., a family, business, or organizational interest; and the request for information must have been in the course of the relationship.’ (*Brown v. Kelly Broadcasting Co.* (1989) 48 Cal.3d 711, 727, 257 Cal.Rptr. 708, 771 P.2d 406; see also *Lundquist v. Reusser, supra*, 7 Cal.4th 1193, 31 Cal.Rptr.2d 776, 875 P.2d 1279.)” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 914.)

The common interest privilege is usually described as a qualified or conditional one. (*Id.*, at 914.) If malice is shown, the privilege never arises in the first instance. (*Id.*, at 915; see, Civ. Code, § 47, subd. (c).) Malice for purposes of the statute means a state of mind arising from hatred or ill will, evidencing a willingness to vex, annoy or injure another person. (*Kashian v. Harriman*, 98 Cal.App.4th at 915.)

“Application of the privilege involves a two-step analysis. The defendant has the initial burden of showing the allegedly defamatory statement was made on a privileged occasion, whereupon the burden shifts to the plaintiff to show the defendant made the statement with malice. (*Lundquist v. Reusser, supra*, 7 Cal.4th 1193, 31 Cal.Rptr.2d 776, 875 P.2d 1279.) The existence of the privilege is ordinarily a question of law for the court. (*Institute of Athletic Motivation v. University of Illinois, supra*, 114 Cal.App.3d at p. 13, fn. 5, 170 Cal.Rptr. 411.)” (*Id.*)

Greget’s allegations in support of the first two causes of action do not show the common interest privilege applies. In addition, even if the common interest privilege arose, Greget alleged sufficient facts to show malice. (Greget FACC, ¶¶ 45, 46, 48, 57, 58, and 60.)

Statute of limitations

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.)

There is no dispute these causes of action are governed by the one-year statute of limitations in CCP section 340, subdivision (c).) The statute of limitations is one year for an action for libel and slander. (Code Civ. Proc., § 340, subd. (c).)

A cause of action accrues at the time when the cause of action is complete with all of its elements. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) An important exception to the general rule of accrual is the discovery rule, which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. (*Id.*, at 807.)

For defamation, a plaintiff must allege that: (i) defendant published the statement, (ii) the statement was about plaintiff, (iii) the statement was false, and (iv) the statement was defamatory (that is, it exposed the plaintiff to contempt or ridicule); and, if the statement it is not defamatory on its face, (v) plaintiff suffered special damages. (*Wong v. Tai Jing* (2010) 189 Cal.App.4th 1354, 1369; *see also* CACI 1700-01.)

The general rule is that publication occurs when the defendant communicates the defamatory statement to a person other than the person being defamed.” (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1247.) In addition, the general rule that each publication of a defamatory statement gives rise to a new cause of action for defamation applies when the original defamer repeats or recirculates his or her original remarks to a new audience. (*Id.*, at 1243.)

Greget alleges Bowie made these false and defamatory statements to third parties beginning in or around October 2023. (Greget FACC, ¶¶ 39 and 50.) Greget did not bring these claims against Bowie until December 9, 2025, over two years later after the alleged first broadcast. However, Greget alleges Bowie continued to make these statements after the initial publication in October 2023. (*Id.*) Greget does not allege when the last statement was made. In addition, the statements were made to various audiences. (*Id.*, ¶¶ 40, 41, 52, and 53.) The face of the Greget FACC does not clearly and affirmatively show the claims are time-barred.

Sufficiency of allegations

For defamation, a plaintiff must allege that: (i) defendant published the statement, (ii) the statement was about plaintiff, (iii) the statement was false, and (iv) the statement was defamatory (that is, it exposed

the plaintiff to contempt or ridicule); and, if the statement it is not defamatory on its face, (v) plaintiff suffered special damages. (*Wong v. Tai Jing* (2010) 189 Cal.App.4th 1354, 1369; *see also* CACI 1700-01.)

As the California Supreme Court explained:

Defamation constitutes an injury to reputation; the injury may occur by means of libel or slander. (Civ.Code, § 44.) In general, leaving aside certain qualifications that are not relevant in this case, a written communication that is false, that is not protected by any privilege, and that exposes a person to contempt or ridicule or certain other reputational injuries, constitutes libel. (Civ.Code, § 45; Rest.2d Torts, § 568, subd. (1).) A false and unprivileged *oral* communication attributing to a person specific misdeeds or certain unfavorable characteristics or qualities, or uttering certain other derogatory statements regarding a person, constitutes slander. (Civ.Code, § 46; Rest.2d Torts, § 568, subd. (2).) (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1242.)

Civil Code section 46 defines slander as “a false and unprivileged publication, orally uttered, and also communications by radio or any mechanical or other means which...Tends directly to injure him in respect to his office, profession, trade or business, either by imputing to him general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to his office, profession, trade, or business that has a natural tendency to lessen its profits...”

“Libel is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation.” (Civ. Code, § 45; *John Doe 2 v. Superior Court*, 1 Cal.App.5th at 1312 [“Libel is a form of defamation effected in writing.”].)

The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint. (*Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 893.)

“Where the statement is defamatory on its face, it is said to be libelous per se, and actionable without proof of special damage. But if it is defamation per quod, i.e., if the defamatory character

is not apparent on its face and requires an explanation of the surrounding circumstances (the ‘innuendo’) to make its meaning clear, it is not libelous per se, and is not actionable without pleading and proof of special damages” (5 Witkin, Summary 11th Torts § 638 (2020) 638.)

“A libel which is defamatory of the plaintiff without the necessity of explanatory matter, such as an inducement, innuendo or other extrinsic fact, is said to be a libel on its face. Defamatory language not libelous on its face is not actionable unless the plaintiff alleges and proves that he has suffered special damage as a proximate result thereof. Special damage is defined in Section 48a of this code.” (Civ. Code, § 45a.)
“‘Special damages’ means all damages that plaintiff alleges and proves that he or she has suffered in respect to his or her property, business, trade, profession, or occupation, including the amounts of money the plaintiff alleges and proves he or she has expended as a result of the alleged libel, and no other.” (Civ. Code, § 48a, subd. (d)(2).)

Greget alleged sufficient facts with the required specificity to state the first cause of action for defamation per se based on Bowie’s allegedly false accusation of drug use. (Greget FACC, ¶¶ 39-47.)

Accordingly, the demurrer to the first cause of action for defamation is overruled.

Greget alleged sufficient facts with the required specificity to state the second cause of action for defamation per se based on Bowie’s allegedly false accusation of embezzlement/misappropriation. (Greget FACC, ¶¶ 49-59.)

Accordingly, the demurrer to the second cause of action for defamation is overruled.

Third cause of action for intentional infliction of emotional distress

The elements to plead a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.)

“Behavior may be considered outrageous if a defendant (1) abuses a relation or position that gives him power to damage the plaintiff’s interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. . . .” (*Molko v. Holy Spirit Ass’n* (1988) 46 Cal. 3d 1092, 1122 (superseded by statute on other grounds).)

“The law intervenes only where the distress inflicted is so severe that no reasonable man could be expected to endure it. The intensity and duration of the distress are factors to be considered in determining the severity.” (*Fletcher v. Western Life Insurance Co.* (1970) 10 Cal.App.3d 376, 397.) “Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.)

“Discomfort, worry, anxiety, upset stomach, concern, and agitation” as the result of defendant’s conduct do not constitute emotional distress of “such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 105.) “[O]rdinary defendants are not liable for mere insult, indignity, annoyance, or even threats, where the case is lacking in other circumstances of aggravation. The reasons are not far to seek. Our manners, and with them our law, have not yet progressed to the point where we are able to afford a remedy in the form of tort damages for all intended mental disturbance. Liabilities of course cannot be extended to every trivial indignity.... Accordingly, it is generally held that there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings.” (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1128.)

Greget did not allege sufficient facts to state this cause of action. Demurrer is sustained with 15 days leave to amend.

Fourth cause of action for negligent infliction of emotional distress

The cause of action for negligent infliction of emotional distress is not an independent tort. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868.) “The tort of negligent infliction of emotional distress is a variation of the tort of negligence. The traditional elements of duty,

		breach of duty, causation and damages apply.” (<i>Slaughter vs. Legal Process & Courier Serv.</i> (1984) 162 Cal.App.3d 1236, 1249.) “The California Supreme Court has allowed plaintiffs to recover damages as ‘direct victims’ in only three types of factual situations: (1) the negligent mishandling of corpses (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 879 [2 Cal.Rptr.2d 79, 820 P.2d 181]); (2) the negligent misdiagnosis of a disease that could potentially harm another (<i>Molien, supra</i>, 27 Cal.3d at p. 923); and (3) the negligent breach of a duty arising out of a preexisting relationship (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1076 [9 Cal.Rptr.2d 615, 831 P.2d 1197]).” (Judicial Council Of California Civil Jury Instruction 1620.) Greget did not allege sufficient facts to state this cause of action. More specifically, there is a failure to allege with sufficiency facts to show that a duty arose out of an existing relationship. Demurrer is sustained with 15 days leave to amend. <u>Prayer</u> Plaintiffs also take issue with Greget’s prayer for declaratory relief and injunction; however, that is not a proper matter for demurrer. The Court declines to consider whether Greget’s prayer for declaratory relief and injunction is proper. Plaintiffs shall give notice. Case Management Conference Continued to August 3, 2026 at 9:00 a.m.
3	First Foundation Inc. vs. Keller 2025-01493220	Motion to Compel Production There is no tentative
4	Galindo vs. Sosoatu 2025-01536978	Motion to Strike Portions Of Complaint Continued to 08/03/2026
5	McPherson vs. Donald & Lynn Southard, LLC	Motion to Quash Service of Summons Continued to 07/06/2026

	2025-01494975	Continued to 07/06/2026
6	Pham vs. Truong, MD. 2024-01407145	Motion for Summary Judgment and/or Adjudication The unopposed motion of defendants Son Truong, M.D. and Struong Cosmetic for summary judgment on plaintiffs Binh Duong and Dieu Pham aka Mei Tiao Fan for medical negligence and loss of consortium is granted. Legal Standard A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” <i>Id.</i> at 851. A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. Code Civ. Proc. § 437c(p)(2); <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. The scope of this burden is determined by the allegations of the plaintiff’s complaint. <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–382 (pleadings serve as the outer measure of materiality in a summary judgment motion); <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 (respondent only required to defeat allegations reasonably contained in the complaint). A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. <i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597. Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. <i>Id.</i> In making this determination, the moving party's affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal. pp.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> Substantive Law The elements of a professional negligence cause of action are: (1) the duty of the professional to use such skill, prudence and diligence as other members of his profession commonly possess and exercise; (2) breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or

damage resulting from the professional negligence. *Galvez v. Frields*, 88 Cal.App.4th 1410, 1420 (2001).

In a medical malpractice action, the evidence must be sufficient to allow the jury to infer that in the absence of the defendant's negligence, there was a reasonable medical probability the plaintiff would have obtained a better result. *Alef v. Alta Bates Hospital*, 5 Cal.App.4th 208, 216 (1992). A mere possibility the defendant's negligence caused the wrong is insufficient. *Simmons v. West Covina Medical Clinic*, 212 Cal.App.3d 696, 702 (1989). There exists an obvious distinction between a reasonable medical probability and a medical possibility. *Id.* There can be many, even an infinite number of possible circumstances, which can produce an injury. *Id.* But a "possible" cause only becomes "probable" when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action. *Id.*

When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. *Munro v. Regents of the University of Calif.*, 215 Cal.App.3d 977, 985 (1989).

Here, Defendants have submitted expert testimony that Dr. Truong performed up to the applicable standard of care and did not cause his patient's death. [Applebaum Decl., ¶¶ 32-47.] Plaintiffs have not submitted a counter expert witness declaration that raises triable issues of fact as to whether Defendant's treatment of Plaintiff Fan met the applicable standard of care and caused or substantially contributed to her injuries.

In the absence of any triable issue of fact, Defendants are entitled to summary judgment as to Plaintiff Fan's medical negligence cause of action.

•Loss of Consortium

A spouse's loss of consortium claim rises or falls with the other spouse's medical malpractice claim. *Tucker v. CBS Radio Stations, Inc.* (2011) 194 Cal.App.4th 1246, 1256. Accordingly, Defendants are also entitled to summary judgment on Plaintiff Duong's loss of consortium claim.

The motion for summary judgment is therefore granted.

Defendant to give notice.

7	Phillips vs. Newport-Mesa School District 2025-01474929	Motion to Compel Further Responses to Special Interrogatories Continued to 07/13/2026
8	Pooph, Inc. vs. ONM Environmental, Inc. 2025-01511009	1. Motion for Order to Stay Proceedings 2. Case Management Conference Off Calendar
9	Ramirez vs. Goering 2025-01479940	Demurrer to Amended Complaint Moot – Second Amended Complaint filed 05/12/2026
10	Ramos vs. Fan 2024-01371487	Motion for Determination of Good Faith Settlement Off Calendar
11	Rivera vs. American Honda Motor Company, Inc. 2024-01374210	Motion for Attorney Fees Plaintiff Brisa Rivera’s motion for attorney fees against Defendant American Honda Motor Company, Inc. is granted in part as set forth below. Plaintiff is awarded fees in the total amount of \$33,678.55. On 5/6/25, Defendant served a CCP 998 offer to Plaintiff in the amount of \$25,000 for a repurchase, plus attorneys’ fees, costs and expenses by motion, which Plaintiff accepted. (Jiang Decl., ¶ 27, Ex. 1.) Defendant agreed in the 998 Offer that Plaintiff is the “prevailing party” for purposes of a fee motion. (<i>Id.</i>) In Plaintiff’s motion/reply brief, she seeks a total of \$38,550.35 in fees. It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of University of California</i> (1998) 67 Cal.App.4th 437, 449.) Additionally, a trial court has broad discretion to determine the amount of reasonable attorney’s fees, as an experienced trial judge is in the best position to decide [the] value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.)

		The court finds that the hourly rates of \$415-\$540 per hour for attorneys with 7-13 years of experience, and \$210-\$215 for paralegals are reasonable. Based on counsels' billing statements, the Court finds that \$33,678.55 is a reasonable amount of attorney fees in this matter, and awards this amount. In reaching this number, the Court deducted \$697.50 representing time spent on the reply brief in support of this motion, that it found to be excessive. The Court additionally deducts \$1,023.30 time representing paralegal time that is administrative/clerical in nature, and also duplicative of attorney work. Lastly, the Court deducts \$3,151.00 representing entries that are overly vague. The Court cannot evaluate the reasonableness of a billing entry that states only "confer re case," "email re case," "call to/from counsel," etc. The Court did not deduct any additional fees as it finds that the remainder of the fees incurred were reasonable and necessary to the litigation. Given that Plaintiff acknowledges she already received payment of costs in the amount of \$1,319.69, the request for costs in the motion is denied as moot. Plaintiff shall give notice of the ruling.
12	Sundance Air Support, Inc. vs. General Motors, LLC 2025-01482070	Motion for Protective Order Off Calendar